

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case No. 2007-002084

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF SHERRY L.
FORSYTH, LPC.**

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Sherry L. Forsyth, LPC, ("Applicant") as follows:

1. Applicant applied for initial licensure as a professional counselor by endorsement with the Board by application dated May 25, 2006.
2. The Board has jurisdiction over the Applicant and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial application for licensure as a professional counselor in the state of Colorado without the necessity of holding a formal hearing. This Order constitutes the entire agreement between the parties, and there are no other agreements or promises, written or oral, that modify, interpret, construe or affect this Order. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. Applicant holds a license to practice professional counseling in the State of Arizona pursuant to license number LPC-1730.
 - b. On or about November 3, 2006, Applicant entered into a Consent Agreement and Order with the Arizona Board of Behavioral Health Examiners ("Consent Agreement").
 - c. By virtue of the Consent Agreement, Applicant acknowledged, *inter alia*, the failure to maintain a viable and appropriate treatment plan for a client, the failure to maintain legible comprehensive progress notes of her treatment with the client, and accepted the client's catering services in lieu of payment for therapy.

d. Applicant represents to the Board that as of the date of her signature on this Order, to the best of her knowledge, she is currently in compliance with the terms and conditions of the Arizona Consent Agreement.

5. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3) (c), C.R.S., to grant Applicant a conditional license and to impose clinical supervision as a condition of said license.

6. Applicant consents to the following limitations to her license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

7. The Board finds that the above conduct is a violation of §12-43-222(x), C.R.S.

PERIOD OF CLINICAL SUPERVISION

8. Applicant's license to practice professional counseling in the State of Colorado is hereby placed under clinical supervision for five years commencing from the date this Order is fully executed or the date Applicant's clinical supervisor is approved, whichever date is later. During the period of clinical supervision, Applicant shall be bound by the terms and restrictions set forth in this Order.

9. The period of clinical supervision is tolled during any time that Applicant is not practicing in this state, unless Applicant petitions the Board in writing for credit for practicing professional counseling in another state, during which her practice was subject to clinical supervision. The parties agree that it is within the sole discretion of the Board to grant Applicant credit for any period of time practicing in another state. Unless otherwise agreed the period of clinical supervision shall resume at such time as Applicant resumes practicing in the State of Colorado and in accordance with this Order.

10. If, at the end of the period of clinical supervision, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of clinical supervision. Request for termination of clinical supervision must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of clinical supervision.

CLINICAL SUPERVISOR

11. During the term of clinical supervision, Applicant's practice shall be monitored by a clinical supervisor. Applicant shall submit, in writing, three proposed clinical supervisors for the Board's approval. Applicant shall include an approved application from each potential clinical supervisor, with attached curriculum vita or resume. The clinical supervisor shall meet the following criteria:

a. The clinical supervisor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

b. It is recommended that the clinical supervisor have a minimum of five years experience and has not been subject to professional discipline.

c. The clinical supervisor shall have no current or past financial or personal interest in Applicant or Applicant's practice. Former employees and business associates fall under this provision.

12. After the Board's written approval of the clinical supervisor, Applicant and the clinical supervisor shall enter into a written contract for supervision. Applicant shall not begin practice in Colorado as a professional counselor until such time as the Board approves the proposed clinical supervisor and the Applicant and the clinical supervisor have entered into a written contract for supervision.

13. The clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has received a copy of this Order, the application and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Applicant's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

14. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The practice evaluation shall examine all aspects of Applicant's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first clinical supervisor report shall include the findings of the practice evaluation.

15. Should the Board determine from the clinical supervisor's evaluation that Applicant cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Applicant shall immediately cease any part of the practice that the Board determines, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Applicant must take and conditions Applicant must meet so that Applicant can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Applicant is not qualified, competent, and safe to practice. Once Applicant satisfies the Board that she is qualified, competent, and safe to fully practice, Applicant may resume full practice.

16. The clinical supervisor shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the clinical supervisor deems necessary, for every 20 hours of client contact, but at least once a month. During the clinical supervision sessions, Applicant and her clinical supervisor must review and discuss each of Applicant's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Applicant is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the clinical supervision is completed.

18. If at any time the Board has questions or concerns regarding the supervision, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at the Board meeting.

19. If at any time the clinical supervisor believes Applicant is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Applicant. Upon submission of such a report, Applicant shall immediately cease the practice of professional counseling.

20. Applicant shall make every effort to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If for any reason the clinical supervisor ceases to perform the functions specified in this Order, Applicant shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.

21. Applicant or the clinical supervisor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Applicant shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct her/his supervision and report to the Board in accordance with this Order.

CONTINUING EDUCATION

22. During the period of clinical supervision, Applicant must successfully complete at least 20 hours each year of Board-approved professional continuing education courses in the areas to include legal/ethical issues specifically related to the practice of professional counseling and record-keeping. Applicant shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

EARLY TERMINATION

23. After successful completion of no less than three years of clinical supervision, and upon recommendation of Applicant's clinical supervisor, Applicant may petition for early termination of clinical supervision. Prior to submitting a petition for early termination to the Board, Applicant agrees to undertake a Board-approved independent practice evaluation to determine her fitness to practice with skill and safety to clients. The parties agree that the board's

decision regarding such a petition shall be made on the basis of the Board-approved independent practice evaluation and the clinical supervisor's recommendation or both. The parties agree that the Board's decision regarding such a petition shall be made at the sole discretion of the Board. Applicant hereby waives the right to appeal the Board decision on this issue.

TERMS AND CONDITIONS

24. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

25. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

26. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

27. During the pendency of this Order, Applicant agrees that she will provide permission to and allow her clinical supervisor, therapy evaluator or therapist to provide records and information obtained in the normal course of clinical supervision, therapy evaluation, or treatment to the Board if the clinical supervisor, therapy evaluator, or therapist determines that Applicant is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Applicant explicitly waives her right to maintain confidentiality of records or information provided to the clinical supervisor, therapy evaluator, or therapist in the normal course of clinical supervision, therapy evaluation, or treatment if the clinical supervisor, therapy evaluator, or therapist determines that she is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.

28. In the event Applicant relocates at any time during the period of clinical supervision, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

29. Applicant is fully aware of and understands the right to receive a formal notice of grounds for denial and to have a formal hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein. The terms of this Order were mutually negotiated and determined.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §12-43-224, C.R.S.

32. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. Applicant shall obey all state and federal laws while this Order is in effect.

34. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

35. This Order shall become effective when accepted and signed on behalf of the Board.

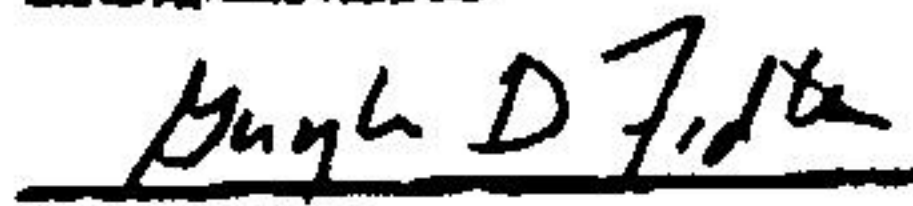
36. This Order shall be admissible as evidence at any hearing held before the Board.

37. This Order shall be a public record in the custody of the Board.

APPLICANT


Sherry L. Foreyth, LPC

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**


Gayle Fidler
Program Director

Effective Date: This 30th day of
August, 2007.

APPROVED AS TO FORM:

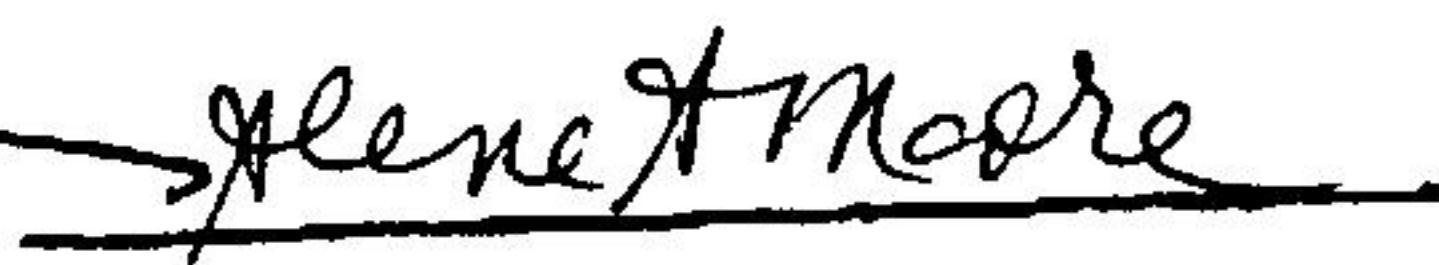
FOR THE APPLICANT

FOR THE BOARD



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